

Ghiglia: "Our lives translated into data, we need to enhance protections"

Digitalization, artificial intelligence, combating aggressive telemarketing, special attention to vulnerable individuals, protection of health data: these are the themes on which the Italian Data Protection Authority has been most engaged in 2023, with a human-centered perspective towards the challenges of technological innovation.

Intervention by Agostino Ghiglia, member of the Italian Data Protection Authority (AgendaDigitale, July 5, 2024)

The activities carried out in 2023 by the Italian Data Protection Authority – summarized in the Annual Report presented to Parliament by President Pasquale Stanzone – can be categorized into the main ordinary activities within the Authority's competence.

Adoption of measures, hearings, issuance of opinions, responses to reports and complaints, corrective and sanctioning measures, public relations activities, cooperation with other Authorities, communication, and dissemination.

This represents a huge volume of ordinary activity, often unknown to most.

The numbers from the privacy authority's annual report

The numbers, above all, can provide a clearer and more immediate understanding of the substantial work carried out by the Authority; data that is even more significant considering the now chronic shortage of personnel. In 2023, we issued 634 collegiate measures, 59 opinions on legislative and administrative acts, 263 decisions on complaints, while the IMI procedures totaled 1,595, personal data breaches amounted to 2,037, of which 1,284 involved private individuals, and reports to the Authority reached 120,311, with as many as 113,828 concerning telematic networks and marketing. Responses to complaints and reports totaled 19,281.

This ordinary yet "particular" work carries with it stimuli and challenges that are far more universal and profound, aimed at the protection of personal data, which, in the digital age, represent the transfer of our existences online.

Such challenges are made increasingly difficult by the explosion and incredible spread of generative Artificial Intelligence in its countless forms.

AI dominates the thoughts of the Authority

The most significant theme that dominated 2023 was indeed the massive spread of Artificial Intelligence, particularly the proliferation of generative chatbots, on which the Italian Authority intervened with the temporary suspension of ChatGPT on April 11, 2023, causing a worldwide sensation followed by emulation. Following this measure and subsequent discussions with OpenAI, the platform was reopened, ensuring greater transparency and more rights for users.

It is also worth noting the halt to the Replika chatbot and the investigation into Sora, an AI model that creates videos from a few lines of text, resolved without consequences as the application is not yet widespread in Italy.

I particularly want to emphasize that the Italian Data Protection Authority has been a global pioneer and that, prior to our intervention, generative AI was not even mentioned in the AI ACT.

For this decision, initially misunderstood and superficially criticized, the Authority was recognized both for its commitment to investigating generative Artificial Intelligence in general (particularly regarding ChatGPT) and for the significant contribution made in ensuring the protection of personal data, regulation, and transparency of machine learning algorithms.

This recognition came from the 17th Computer, Privacy and Data Protection Conference (CPDP) in Brussels.

Following the Italian intervention, the European privacy authorities, gathered in the European Data Protection Board (EDPB), decided to launch a task force on ChatGPT and generative AI.

The human-centered approach with which Europe tends to orient and regulate AI (DSA and DMA), strongly reiterated at the last Italian G7 by Prime Minister Giorgia Meloni and supported by the words of the Pope, is the effort to "truly put at the service of man what can represent both an extraordinary factor of development and well-being [...] and, if not well governed, a source of risks that are by no means negligible, for the individual, society, and democracy," as reiterated by President Stanzone.

The confrontation between sciences/technologies and rights/ethics/human defense is ancient and has characterized all eras, particularly in the presence of major technological revolutions. With the advent of AI, this confrontation and balance is and will be even more important; the defense of personal data represents and will increasingly represent a safeguard for the defense of individual freedom and uniqueness, countering the risk that algorithms reflect a single worldview, that chatbots produce and disseminate prejudices, biases, and fake news. It is therefore necessary to monitor the inputs and data with which AI is trained and the ways in which this new work is carried out, not forgetting the invisibles of the gig economy.

Web scraping

Among other significant activities, the Authority has initiated an exploratory investigation into web scraping, through which it has gathered observations, comments, and operational proposals on the measures adopted and to be adopted by website and platform managers, both public and private, regarding the

massive collection of personal data, carried out specifically through web scraping techniques, by companies that develop generative artificial intelligence systems, for the purpose of training the related algorithms (provision no. 21 December 2023 n. 621, web document no. 9972593).

This investigation concluded with a document of non-binding guidelines that represents a very useful tool for industry operators.

Public Administrations

On the Public Administration front, multiple issues have been addressed: from the pre-filled 730 declaration, to the transmission of health reimbursement data, to the interaction with the Ministry of Education for the family-student Platform, to the consultative action for the digitization of the PA.

Particular attention has also been paid to the use of biometric data and the spread of facial recognition systems.

Very delicate, then, are the issues related to Health: from the FSE to the health dossier, to telemedicine.

Security

Among the various educational initiatives, which I hold dear, I would like to highlight that an informational page was created in April 2023 on the Garante's website dedicated to Dark Patterns: deceptive design models that can influence the behavior of those browsing online and hinder data protection.

Guidelines for password security have been developed with ACN, efforts have continued to combat aggressive telemarketing, cyberbullying, and interventions have been made multiple times to balance the right to information and privacy.

Protection of Minors

We have strived to be timely on news cases in which we have intervened urgently with reminders. For example, in the case of the violence in Palermo to draw attention to the need to respect the regulatory parameters to protect victims of sexual violence or in the case of the Turin summer party or, again, in the case of the video of the abandoned newborn in Aprilia.

The trend, I believe incontrovertible, is that the

datafication of our lives is increasingly consistent and raises many questions, especially in relation to AI models and their use (medical, scientific, commercial, political, informational, investigative, judicial, predictive...).

Who inputs the data into the systems (and I would add for what purpose)? Who guarantees the reliability of the algorithms underlying the systems? How aware and consenting are we of the new world?

These are questions to which we may have become accustomed; the problem lies in the partial, inadequate, asynchronous, and continuously evolving responses.

From all this, it follows that the greater the datafication, the greater the effort must be to protect our data because within/behind them lie our lives.